

		although true, is either actually misleading or which has a capacity, likelihood or tendency to deceive or confuse the public. Thus, to state a claim under either the UCL or the false advertising law, based on false advertising or promotional practices, it is necessary only to show that 'members of the public are likely to be deceived.'" (<i>Kasky v. Nike, Inc.</i> (2002) 27 Cal.4th 939, 950–951 [cleaned up].) Therefore, because there is a triable issue as to Plaintiff's false advertising claim as discussed above, there is necessarily a triable issue as to Plaintiff's UCL claim and the Court need not address the fictitious business permit issue.
13	25-01457297 <i>Primex Clinical Laboratories, Inc. vs. Hughes</i>	Motion to Lift Stay Pending Arbitration Plaintiff Primex Clinical Laboratories, Inc.'s Motion to Lift Stay Pending Arbitration is GRANTED. Plaintiff moves to lift the stay pending arbitration due to the dismissal from this action, without prejudice, of defendants Michael Hughes, Rand Ajinah, and Trudy Rosen (collectively, "Former Employees"). Plaintiff brings this motion pursuant to Code of Civil Procedure sections 128, subdivision (a), and 1281.4. Defendants David White, Rajit Malhotra, Alex Nguyen, Derek Nguyen, Varun Kapoor, MD Tox Laboratory, Inc. dba Innovative Health Diagnostics, LLC ("IHD") and Nura Health, Inc. ("Nura Health") (collectively, "IHD and Nura Defendants") argue Plaintiff's dismissal of the Former Employees is an improper attempt to evade this Court's order to arbitrate. IHD and Nura Defendants also argue lifting the stay would interfere with Michael Hughes and Rand Ajinah's rights to have the arbitrator decide their declaratory relief claim on Plaintiff's alleged trade secrets. Code of Civil Procedure section 128, subdivision (a)(2) and (5) provides: "Every court shall have the power to do all of the following: . . . [¶] (2) To enforce order in the proceedings before it, or before a person or persons empowered to conduct a judicial investigation under its authority . . . [and] [¶] (5) To control the furtherance of justice, the conduct of its ministerial officers, and of all other persons in any manner connected with a judicial proceeding before it, in every matter pertaining thereto." Code of Civil Procedure section 1281.4 provides in relevant part, "If a court of competent jurisdiction, whether in this State or not, has ordered arbitration of a controversy which is an issue involved in an action or proceeding pending before a court of this State, the court in which such action or proceeding is pending shall, upon motion of a party to such action or proceeding, stay the action or proceeding until an arbitration is had in accordance with the order to arbitrate or until such earlier time as the court specifies." (See also <i>Cinel v. Christopher</i> (2012) 203 Cal.App.4th 759, 769 ["Section 1281.4 provides a stay of pending litigation while a related arbitration is proceeding."].) In addition, a plaintiff may dismiss an action or any defendant, with or without prejudice, at any time before the actual commencement of trial.

(Code Civ. Proc. § 581, subds. (b)(1), (c).) A plaintiff may do so even when the action has been ordered to arbitration, but before the arbitration has commenced. (*Cardiff Equities, Inc. v. Superior Court* (2008) 166 Cal.App.4th 1541, 1549.)

On 9/5/25, the Court granted a motion to compel arbitration, in part, as to the Former Employees and denied the motion, in part, as to IHD and Nura Defendants. The court ordered Plaintiff to arbitrate all of its claims against the Former Employees and stayed the action pending the outcome the arbitration. (See ROA 49; Gutenplan Decl., ¶ 6, Ex. A.) Plaintiff did not commence arbitration. Instead, in December 2025, Plaintiff voluntarily dismissed the Former Employees from this action without prejudice. (See ROA 54, 62; Gutenplan Decl., ¶ 7.) Plaintiff filed the instant motion on 2/3/26.

On 2/5/26, Hughes and Ajinah initiated arbitration against Plaintiff with JAMS seeking declaratory relief on Plaintiff's trade secret claims among others. Plaintiff filed an answer on 3/11/26. (Hrutkay Decl., ¶ 5; Ex. A (Statement of Claim); Ex. B (Answer).) An arbitrator was appointed on 5/20/26. (Hrutkay Decl., ¶ 6, Ex. C.)

Plaintiff timely dismissed the Former Employees from this action before commencing arbitration of its claims against the Former Employees. Thus, all arbitrable claims at issue here have been extinguished.

IHD and Nura Defendants' contention that the stay should remain in place because Hughes and Ajinah commenced arbitration lacks merit. Code of Civil Procedure section 1281.4 does not authorize a stay of a court action based on an arbitration to which the parties in the court action are not also parties in the arbitration, nor does it permit a stay based on an arbitration that this Court never ordered. The Fourth District Court of Appeal addressed this issue in *Leenay v. Superior Court* (2022) 81 Cal.App.5th 553. In *Leenay*, the court held "section 1281.4 applies only when a court has ordered parties to arbitration, the arbitrable issue arises in the pending court action, and the parties in the arbitration are also parties to the court action." (*Id.* at p. 558.) The defendant argued "the plain language of section 1281.4 requires (1) an overlapping question of law or fact between the arbitration and the court action and (2) only one party in common between both proceedings." (*Id.* at p. 564.) The court rejected this argument, explaining "nothing in the statutory language supports that interpretation. By definition, a controversy arises between the parties to an agreement—not one party to it and a stranger to the agreement. Both parties who have agreed to arbitrate the controversy must be parties in the pending court action." (*Ibid.*) That is not the case here. IHD and Nura Defendants are not parties to the Hughes and Ajinah JAMS arbitration and Hughes and Ajinah are no longer parties to this action. In other words, only Plaintiff is a party to both this action and the current JAMS arbitration. Thus, section 1281.4 does not apply.

Further, IHD and Nura Defendants' reliance on section 1281.2 is misplaced. "By its plain language, the stay provisions of section 1281.2

		may be invoked only by a petition of a party to an arbitration agreement. This language is neither vague nor ambiguous, and it makes perfectly good sense—because no one other than a party to the arbitration agreement ought to be allowed to interfere with the arbitration process.” (<i>One World Networks Integrated Technologies, Inc. v. Dutch</i> (2002) 103 Cal.App.4th 1038, 1044 [cleaned up].) This court has already found that IHD and Nura Defendants are not parties to any arbitration agreement with Plaintiff. Thus, IHD and Nura Defendants lack standing to invoke section 1281.2 to maintain a stay based on an arbitration between Plaintiff and individuals who are no longer parties to this action. The motion is GRANTED. The Court lifts the stay in this action.
14	24-01431041 SOCAL CONSTRUCTION FUND CONTROL, LLC vs. DEVIANTE LLC	1) Motion to Compel Answers to Form Interrogatories 2) Motion to Compel Answers to Special Interrogatories 3) Motion to Compel Answers to Special Interrogatories 4) Motion to Compel Deposition (Oral or Written) 5) Motion to Compel Production MOTION NO. 1: Cross-Complainant Lorez GP’s motion to compel Cross-Defendant Kal Milan Construction, Inc., to serve full and complete verified answers, without objections, to Form Interrogatories - Construction Litigation, Set No. One, is MOOT. On November 24, 2025, Cross-Defendant served verified responses, without objections, to the discovery request. Therefore, the Motion is MOOT. Cross-Defendant is ordered to pay \$682.50 in sanctions to Cross-Complainant within 30-days of notice of this ruling. Moving party to give notice. MOTION NO. 2: Cross-Complainant Lorez GP’s motion to compel Cross-Defendant Kal Milan Construction, Inc., to serve full and complete verified answers, without objections, to Special Interrogatories, Set No. One, is MOOT. On November 24, 2025, Cross-Defendant served verified responses, without objections, to the discovery request. Therefore, the Motion is MOOT. Cross-Defendant is ordered to pay \$682.50 in sanctions to Cross-Complainant within 30-days of notice of this ruling. Moving party to give notice. MOTION NO. 3: Cross-Complainant Lorez GP’s motion to compel Cross-Defendant Kal Milan Construction, Inc., to serve full and complete verified answers and